



U.S. Xpress Driver Qualification Guidelines

General Requirements

- 21 years of age
- Completed Company Application
- Applicant must have held a driver's license within the United States or U.S. territories for the last 12 consecutive months.
 - If CDL is not issued in the current state of residence, driver has 30 days following orientation to update.
- Current and valid Class A CDL (certain Dedicated accounts require Hazmat endorsements) issued by only one state
- Ability to travel throughout the United States without restriction
- Ability to speak and read English in accordance with 49 CFR 391.11(b)(2)
- Ability to perform the essential functions described in the job description, with or without reasonable accommodation
- Meet Form I-9 requirements
- Holds a valid medical certification card
- Pass a DOT Physical Examination
- Pass a Company Physical Standards Test (freight-handling drivers only)
- Pass a Company Road Test
- Pass a DOT urine screen and a company-required hair test
- No positive alcohol or controlled substances tests and no refusals of controlled substances tests at previous employers
- Not in prohibited status in FMCSA Drug & Alcohol Clearinghouse
- Prospective candidates must confirm in writing that they have not used any illegal drugs in the 90 days. "Illegal drugs" includes lawful controlled substances that have been illegally or improperly obtained and any federal Schedule I-V drug, even if legalized under state law. "Illegal drugs" does not include lawfully prescribed drugs taken in accordance with the prescription.

Alcohol Violations/Convictions

- No conviction or violation for operating a POV while under the influence of alcohol (DUI/DWI) within the past 10 years if the offense occurred while the driver held a CDL-A or Commercial Learners Permit.
- No conviction or violation for operating a POV while under the influence of alcohol (DUI/DWI) within the last 5 years if the offense occurred prior to the driver obtaining a CDL-A or Commercial Learners Permit.
- No two or more convictions or violations for operating a motor vehicle while under the influence of alcohol (DUI/DWI).
- No convictions or violations for operating a CMV while under the influence of alcohol (DUI/DWI).
- No refusal to take an alcohol test as required by a State or jurisdiction under its implied consent laws or regulations defined in FMCSR 383.72.



Controlled Substances Violations/Convictions

- No conviction or violation related to the use of a controlled substance in the past 10 years if the offense occurred while the driver held a CDL-A or Commercial Learners Permit.
- No conviction or violation related to the use of a controlled substance within the last 5 years if the offense occurred prior to the driver obtaining a CDL-A or Commercial Learner's Permit.

Work Experience Guidelines – Student Drivers

- 0-3 month's experience –To be considered for employment an applicant should have successfully completed a U.S. Xpress-approved driving school curriculum and be accepted into the U.S. Xpress Professional Driver Onboarding Program.
- Completion of truck driving school must be within the last three (3) years.

Work Experience Guidelines - Experienced OTR and Local Drivers

- Experience must consist of driving a combination of tractor and separate trailer > 40' in length
- Drivers must have a minimum of 3 months experience in the last 36 months. For drivers with less than 6 months of experience, the **driver can have no preventable CMV roadway accidents.**
- Drivers with less than 3 months of experience in the last 36 months, may qualify by passing an Extended Road Test if either (a) the driver has 6 months of verified tractor-trailer experience in the last 5 years or (b) 12 months of verified tractor-trailer experience in the last 10 years.
- Drivers whose qualifying experience cannot be verified by the end of orientation will be required to successfully pass an expanded driving competency assessment.
- Drivers discharged for safety reasons by a prior employer require 6 months of verified subsequent safe driving in a CMV in order to be eligible for employment consideration.

Notes Regarding Work Experience:

- *Any military experience in the last 5 years must be listed on the application. If the experience is in the last 3 years, a copy of the DD214 is required.*
- *For periods of driving self-employment used to achieve qualifying experience, driver must provide a valid DOT number and verifiable insurance for the entire period.*
- *If discharged from a non-driving job, U.S. Xpress will attempt to verify experience and will request a statement from the driver listing all jobs in the last 3 years. The driver's statement will be used for eligibility if a previous employer fails to provide reasons for discharge.*
- *Staffing Agencies only verify registration with the agency and cannot provide DOT numbers. Driver must provide DOT number of the carrier that the driver drove for.*
- *Unions are a membership organization, not valid employment.*
- *Military Reserves work one weekend per month and is not sufficient to cover an applicant's entire work history. Driver must have additional employment or follow self-employment/unemployment guidelines.*

**Driving Record Violations / Convictions:**

**For purposes of this section, if there is a discrepancy between the PSP violation date and conviction date, then the PSP violation date applies for purposes of calculating whether a driver is qualified.*

GROUP 1 (DOT Major Offenses)	
Violation/Conviction	Guideline
Operating a POV while under the influence of alcohol (DUI/DWI) if the offense occurred while driver held a CDLA-A or Commercial Learner's Permit	10 Years
Operating a POV while under the influence of alcohol (DUI/DWI) if the offense occurred prior to the driver obtaining a CDL-A or Commercial Learner's Permit	5 Years
Two or more convictions for operating a POV while under the influence of alcohol (DUI/DWI)	Disqualified
Operating a CMV while under the influence of alcohol (DUI/DWI)	Disqualified
Use of a controlled substance if the offense occurred while the driver held a CDL-A or Commercial Learner's Permit	10 Years
Use of a controlled substance if the offense occurred prior to the driver obtaining a CDL-A or Commercial Learner's Permit	5 Years
Refusing to take an alcohol test as required by any state or jurisdiction under its implied consent laws or regulations	Disqualified
Leaving the scene of an accident while operating POV or CMV	Disqualified
Using a vehicle to commit a felony, unless identified in a chart below	Disqualified
Driving CMV while Commercial Learner's Permit or CDL is revoked suspended or canceled	Review for Approval, Minimum 1 Year (3 years if operating a CMV transporting hazardous material)
Causing a fatality through the negligent operation of a CMV	Disqualified
For a Second conviction of any combination of the Group 1 violations	Disqualified

**GROUP 2 (DOT Serious Traffic Violations)****Violation/Conviction**

Speeding 15 MPH + while operating a POV or CMV

Driving Recklessly while operating a POV or CMV

Improper or Erratic Lane Change while operating POV or CMV

Following Too Close while operating POV or CMV

Failure to Obey Traffic Control Device (other than Parking) while operating POV or CMV

Driving a CMV without obtaining a Commercial Learner's Permit (CLP) or CDL

Driving a CMV without a Commercial Learner's Permit (CLP) or CDL in the driver's possession

Driving a CMV without the proper class of Commercial Learner's Permit (CLP) or CDL and/or endorsement

Prohibited Use of Handheld Mobile Device or Prohibited Texting while operating CMV

No serious traffic violations in the last 12 months. Requires 6 months of verified subsequent safe driving.**GROUP 3 (DOT Railroad-Highway Grade Crossing Offenses)****Violation/Conviction****Guideline**

Any 1 Railroad Crossing violation while operating a CMV

1 Year

Any 2 Railroad Crossing violations within 36 months while operating a CMV

2 Years

Any 3 Railroad Crossing violations within 36 months while operating a CMV

3 Years

**GROUP 4 (DOT Out-of-Service Order Violations)**

Violation/Conviction	Guideline
Violating a driver or vehicle out-of-service order while transporting nonhazardous materials while operating a CMV	Disqualified
Violating a driver or vehicle out-of-service order while transporting hazardous materials while operating a CMV	Disqualified

GROUP 5 (Other Serious Violations)

Violation/Conviction	Guideline
Speeding in a School or Construction Zone while operating CMV or POV	6 Months
Open Container while operating POV	3 Years
Open container while operating CMV	Disqualified
Fleeing or Evading Law Enforcement while operating CMV	Disqualified
Fleeing or Evading Law Enforcement while operating POV	3 Years
License Suspension for Moving Violations	1 Year
Railroad Crossing Violation while operating POV	6 Months
Operating a CMV while ill or fatigued	Review for Approval; Minimum 1 Year

GROUP 6 (All Other Moving Violations)

Violation/Conviction	Guideline
Any Other Moving Violations not included in Groups 1-5 while operating CMV or POV	No more than 2 MV's in the last 2 years; Safety review before disqualifying



PSP (CSA Violation) History Guidelines

All PSP violations will be reviewed by the Safety department.

Accident History Guidelines

Incident Description	Guideline
Minor Preventable CMV Accident – Private Yard or Parking Lot*	No more than 3 in last 2 years
Minor Preventable CMV Accident – Roadway**	No more than 1 in last 2 years
Preventable CMV Key Crash Accident	None in the last 5 years, requires 6 months of verified subsequent safe driving
Preventable CMV DOT-Recordable Accidents	No more than 1 in last 24 months, requires 6 months of verified subsequent safe driving
Preventable CMV or POV Accident with fatality	No Preventable Fatality accidents (Lifetime)
Maximum number of any Preventable Accidents in POV and CMV in last 2 years	Any combination not to exceed 3 in 2 years; still subject to stated category maximums

* Includes minor backing, hitting pole/fixed object, landscape damage, etc. in a private yard or parking lot at customer location

** Includes minor accidents such as curbing a tire, hitting a power line, hitting a tree limb, etc. on a public roadway

Definitions:

- **Key Crash:** U-Turn, Lane Change, Jackknife on roadway, Loss of control, Rear-end impact, Side Impact, Run Under, Rollover, and Rollaway
- **Preventable CMV Accident:** An accident that involved a commercial motor vehicle and that could have been averted but for an act – or a failure to act – by the motor carrier or the driver.
- **DOT-Recordable Accident:** An accident involving a CMV that results in any of the following:
 - ✓ Fatality;
 - ✓ Bodily injury in which that person receives immediate medical attention away from the scene of the accident; or
 - ✓ At least one of the vehicles involved in the accident had to be towed from the scene

Criminal Record Guidelines

The purpose of a criminal background check and the guidelines contained herein is to ensure a safe and secure place of work for all U.S. Xpress employees, contractors, and customers. This policy shall provide for fair and unbiased treatment of all applicants regardless of race, color, religion disability, sex, national origin, age, genetic information or other protected class of an applicant. These guidelines shall comply with the Fair Credit Reporting Act, Americans with Disabilities Act, Title VII of the Civil Rights Act, and other applicable federal and state laws.



Applicants shall complete a Consumer Reports Disclosure and Authorization Form prior to the check being conducted. Refusal to sign the Consent and Authorization form will constitute grounds to discontinue any employment or contract consideration for that applicant.

Drivers who have pending criminal charges, open warrants and/or outstanding court dates for criminal charges may be asked to provide information related to the conduct underlying the arrest, except to the extent federal, state, or local law prohibits such inquiries. Safety and/or Human Resources will conduct an individualized assessment to determine whether the pending charges makes the individual unfit to drive for U.S. Xpress.

Criminal Conviction	Guideline
Sale/Possession of a Controlled Substance*	5 years
Armed Robbery	5 years
Vehicular Homicide	10 years
Felony Theft	Review by Safety/HR
Murder / Attempted Murder	Review by Safety/HR
Sexual Assault and all other crimes related to sexual violence	Review by Safety/HR
Arson	Review by Safety/HR
Aggravated Offense	Review by Safety/HR
Human Trafficking	Disqualified
Any 2 or more convictions within the past 10 years	Review by Recruiting, Safety/HR

*California state law prohibits employers from asking applicants and employees to disclose, either orally or in writing, information concerning any conviction for the possession, sale or transportation of not more than 28.5 grams of marijuana, or possession of certain drug-related paraphernalia, where the conviction is more than 2 years old. Any such marijuana conviction more than 2 years old from the date of application will not be considered as a factor when a hiring decision is made.

Qualification Guidelines: Decisions-Making Responsibilities

For situations that require additional judgment, or that are not specifically covered by the published guidelines, the decision on eligibility is to be made by Safety Management. Certain situations may also require review by Human Resources.